

TENTATIVE RULING

Case: **Augustus Aetius v. FCA US, LLC**
 Case No. CV2024-2843

Hearing Date: **July 2, 2026** **Department Thirteen** **9:00 a.m.**

Defendant FCA US, LLC's motion to compel plaintiff's responses to request for production of documents and request for sanctions is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 2031.300.) Based on defendant's proof of service, it failed to serve plaintiff Augustus Aetius at the correct email address. (See Cal. Rules of Court, rule 2.251 (c)(4); see also Code Civ. Proc., § 1013b, subd. (b); Plaintiff's consent to electronic service [filed June 11, 2025], ¶ 2.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **In re McLemore Virgil**
 Case No. PR2025-0166

Hearing Date: **July 2, 2026** **Department Fourteen** **9:00 a.m.**

Respondent Sandra R. Gordon's motion to compel answers to form and special interrogatories and requests for production; for an order that the truth of all matters specified in the requests for admissions be deemed admitted, for sanctions, including reasonable attorney's fees is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 2030.290 subd. (b), 2031.300, subd. (b), 2033.280, subd. (b).) Respondent did not file a proof of service at least five court days before the hearing, showing that petitioner Marcel Myres was properly served with the moving papers. (Cal. Rules of Court, rule 3.1300(c); see also Code Civ. Proc., § 1005, subd. (b).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.